



File No.: EXP202311477

RESOLUTION OF WARNING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 8, 2023, the Spanish Agency for Data Protection became aware of a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, the respondent).

The facts brought to the attention of this authority are:

The complainant asserts that the respondent and their partner have a surveillance camera installed facing the complainant's parking area, as well as their residence.

Along with the complaint, a photograph of the camera located at the top of a wall is provided.

On August 24, 2023, the complainant submitted a new document expanding the information provided to date:

In it, they assert that the respondent and their partner have installed a surveillance camera inside their home, behind a window, facing outward. The camera is directed at the complainant's residence.

Along with their document, the following documentation is submitted:

- Report of the complaint dated August 17, 2023, filed with (...) in which, among other matters, it is stated:

"(...).

(...).

(...).

(...)."

- Photograph submitted on August 8, 2023, showing a surveillance camera located at the top of a wall.

- Photograph of the previous camera showing that it is oriented towards the entrance of a garage.

- Two photographs in which a surveillance camera located behind a window focusing outward is distinguished.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on September 18, 2023, as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding document.

THIRD: On November 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On February 5, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on February 14, 2025, as recorded in the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: There is a surveillance system consisting of two cameras that capture the property of a third party due to their location and orientation.

SECOND: One of the cameras is located inside a residence, behind a window, while the other is situated on the exterior of the same.

THIRD: The data controller is A.A.A. with NIF ***NIF.1

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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II

Procedure

Furthermore, Article 63.2 of the LOPDGDD establishes that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

The image is a personal data

Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7 of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

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Images captured by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the party being complained about carries out, among other processing activities, the collection and storage of personal data by having a video surveillance system that captures images of natural persons.

The party being complained about carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity under Article 4.7 of the GDPR.

IV

Obligations regarding video surveillance

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

However, the processing of images through a video surveillance system, to be compliant with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by less intrusive means for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, in accordance with Recital 39 of the GDPR.

2.- The images obtained may not be used for a further purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, a "layered information" system is foreseen in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

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This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information on the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information obligation will be considered fulfilled by placing an informational device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, this sign indicating a monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be

retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of images from cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and Resolutions” / “Regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the “Guides and Tools” section).

V

Unfulfilled obligation: violation of Article 5.1 c) of the GDPR

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera systems or video cameras for the purpose of preserving the security of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed at. The relevance in the processing of the data must occur both at the time of data collection and in the subsequent processing carried out on them.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior government authorization.

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In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public thoroughfare unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

If there is an easement of passage over a property or land, the processing of data would not be excluded from the scope of application of data protection regulations, since, being an area subject to an easement of passage, it is accessible not only by the owner of the dwelling and the persons authorized by them but also by third-party holders of the dominant estate of the easement.

Furthermore, the installed cameras cannot capture images of the private space of third parties and/or public space without a duly justified cause, nor can they affect the privacy of passersby freely traversing the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

In summary, the installation of video surveillance systems in single-family homes must comply with data protection regulations if the cameras are installed outside and can capture images of people at entrances, facades, or party walls.

In this case, the respondent has two video surveillance cameras directed towards the property of a third party that allow for its capture. One of the cameras focuses on the vehicle access area of a third party's residence. On the other hand, the other is located inside the respondent's dwelling, behind a window, and is oriented towards the exterior, specifically towards the access door of a third party's residence.

VI

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

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Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the

following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Warning

When an infringement of the provisions of the GDPR occurs, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of that Regulation includes the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller or processor, may issue a warning.

In this case, given the nature of the facts and circumstances presented in the preceding legal grounds, it is deemed appropriate to issue a warning to the respondent for the infringement of the aforementioned articles.

VIII

Corrective measures

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Once the infringement is confirmed, the resolution may establish the corrective measures that the responsible infringer must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1 c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

In this case, the respondent is required to, within one month from the date of enforcement of the resolution concluding this procedure, adopt the following measures:

- Provide evidence that the cameras have been reoriented to avoid capturing the property of third parties. If the reorientation of the cameras is not sufficient to prevent the capture of third-party property, they must proceed to remove them.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ISSUE A WARNING to A.A.A. with NIF ***NIF.1 for the infringement of Article 5.1c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to provide evidence of having complied with the measures specified in the legal basis VIII.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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